ALLEN MAFU

Versus

SANDRA PODZO

And

THE MINISTER OF LANDS, AGRICULTURE, FISHERIES, WATER, CLIMATE & RURAL DEVELOPMENT.

IN THE HIGH COURT OF ZIMBABWE
CHIVAYO J
BULAWAYO, 15 October 2025 & 2 April 2026.

Court application for declaratur.

Z. C. Ncube, for the applicant.
N. V. Moyo, for the first respondent.
L. Dube, for the second respondent.

CHIVAYO J: The applicant filed the present court application for a declaratory order in terms of section 14 of the High Court Act [CHAPTER 7:06] as read with Rule 59(1) of the High Court Rules, 2021 wherein applicant seeks to declare valid an offer letter between him and the second respondent, and consequential relief in that applicant seeks to evict the first respondent, who is alleged to be in unlawful occupation of applicant's plot.

The parties.

[1] The applicant is Allen Mafu, an adult male who is a Zimbabwean national. The first respondent, Sandra Podzo, is also an adult female who is a Zimbabwean national. The second respondent is the Minister of Lands, Agriculture, Fisheries, Water, Climate & Rural Development cited in his official capacity as the relevant authority concerning land allocations, which is the issue in dispute herein.

Background.

[2] On the 8th of September 2017, the applicant was allocated **Plot Number 3 Homestead Number 3 of the Farm B of Woodvale, Umguza** district in Matabeleland

North measuring 50 hectares. This was under the A2 model of occupation. The applicant submits that he enjoyed peaceful, undisturbed occupation and possession of the premises until sometime in 2023 when the 1st Respondent allegedly disturbed his peaceful occupation by disrupting applicant's operations on the plot. Applicant submits that 1st respondent alleged that she was the lawful title holder, and commenced developments on the area.

[3] The applicant alleges he then approached the office of the second respondent to seek clarity, and second respondent confirmed that if first respondent was at applicant's plot, she was there either mistakenly or unlawfuly. This resulted in summons issued under HCBC 474/24, wherein applicant sought to evict first respondent from the plot in dispute. The summons was later withdrawn at pre-trial conference stage.

[4] The first respondent issued an application for review of the second respondent's decision that there was an administrative hiccup in allocating the plots. The court application, which was under case number 805/24 was removed from the roll on the 14th of February 2025 on a proposed settlement. Applicant submits that the proposed offer by the second respondent to him, offering plot 14 of Woodvale Farm, was unlawful as his offer in relation to plot 3 remains valid. Applicant submits that he rejected the Plot 14 offer, and does not want anything other than plot 3. Applicant also added that the offer of plot 14 was fraudulent due to misrepresentation in that it purports to show that applicant was offered plot 14 on the 8th of September 2017, whereas it was purportedly offered in 2025.

[5] Applicant submits that he has approached this court to enforce his right to undisturbed occupation and utilisation of land allocated to him for resettlement purposes of the land in dispute through a declaratur.

[6] The applicant submits that he is an interested person with a direct and substantial interest in the subject matter of the litigation, which could be prejudicially affected by the judgment of the court. It was further submitted that a tangible and justifiable advantage will flow to the applicant from the judgment of this Honourable Court granting the declaratory order and consequential relief sought in the draft order. The applicant also submitted that the matter is a proper one for the court to grant a declaratory order in the circumstances.

RELIEF SOUGHT

IT IS ORDERED THAT:

1. The allocation of plot number 3 homestead number 3 to the Applicant by the 2nd Respondent on the 8th September 2017 be and is hereby declared lawful and the offer letter still valid.
2. The purported allocation of plot number 14 to the Applicant by the 2nd Respondent is unlawful by reason of false representation of the date of allocation being 8 September 2017 yet the letter of allocation was issued in 2025. Ipso facto it is set aside.
3. The 1st Respondent and all those claiming occupation through her be and are hereby ordered to vacate the Applicant's plot within 10 days of the granting of the order.
4. Failing paragraph 3 above, the Sheriff of Zimbabwe and or his lawful assistants, Bulawayo be and are hereby authorized to evict the 1st Respondent and all those claiming occupation through her.
5. The 1st Respondent shall pay costs of suit on an attorney and client scale.

[7] Applicant prays for an order in terms of the draft order.

First respondent's opposition.

[8] The first respondent is opposed to the application. The first respondent alleges that applicant is seeking a disguised review of the second respondent's decision allocating first respondent plot 3, which on the ground turned out to be plot 2. The first respondent submitted that the present application for a declaratur was inappropriate in the present case. The first respondent submits that the applicant seeks to have set aside a decision of the second respondent which must be the basis for a review application. It is submitted that applicant's cause of action is a grievance on the allocation of plot 2 to the first respondent, which is actually plot 3 on the ground. In that regard first respondent submits that applicant must have filed a review application not an application for declaratur.

[9] The first respondent submits that she was allocated the plot 2 by the second respondent on the 8th of September 2017. First respondent submits that upon allocation of the said plot, she drove to the area using her own vehicle and was with other people who were to be allocated plots. On that day, first respondent submits, the applicant was not available. It is first respondent's submission that the second respondent showed the first respondent her plot and this is the same plot where she has been developing since 2017. It was further indicated that the issue is not about the papers, as applicant was

allocated plot 2, and first respondent allocated plot 3, but that the issue in dispute emanates from physical allocation of the plots, in that second respondent pointed plot 3 to the first respondent in the mistaken belief that it was plot 2.

[10] The first respondent thus submits she was in peaceful occupation of that plot and she even made improvements to it, that is putting boundary pegs to it, erected a boundary fence and also sunk a borehole in that plot. The applicant submits that the improvements made in the plot in dispute amount to USD 25 000.00 going up.

[11] First respondent further submits that the second respondent admitted, through a letter dated 10 February 2025, that there was an administrative error which needed rectification by second respondent's office. The first respondent also submitted that the second respondent admitted in the matter under HCBC474/24 that there was double allocation pertaining to the plot. It is the first respondent's submission that, pursuant to the second respondent's position, second respondent had proposed Plot 14 as a solution to the dispute, which plot first respondent argues was accepted by the applicant.

[12] It was the first respondent's submission that the issue of plot numbering was immaterial in the circumstances, and that the result is that the dispute is in relation to one geographical area. The first respondent further submitted that after the matter under HCBC 805/24 was removed from the roll, second respondent proposed plot 14 as a solution to the dispute. The first respondent submits that if applicant is not happy with the decision by second respondent to be allocated plot 14, she cannot seek relief through an application for a declaratory order, wherein the grievance arises from an administrative decision, which ought to be challenged by way of a review.

[13] The first respondent also challenged the affidavit filed by the second respondent, wherein Obert Jiri, the deponent to the affidavit, who is the Permanent Secretary in the Ministry of Lands, Agriculture, Fisheries, Water and Rural Development deposed to an affidavit on behalf of the 2nd Respondent. The first respondent submits that the deponent has no authority to depose to an affidavit on behalf of the second respondent, more so in light of the fact that the second respondent had deposed to conflicting affidavits in the matters between the parties and before this court, wherein the second respondents in some instances admits that there were administrative errors relating to allocation of the plots, and in some instances submit the applicant is the lawful occupier.

[14] The first respondent also submitted that the applicant has not met the requirements for a declaratur in the following manner:

i. The person must be an interested party.
ii. The court must determine existing or future contingent right.
iii. The case must be a proper case to exercise the court's jurisdiction.

[15] It is the first respondent's submission that the applicant's motion fails on the second and third requirement, in that applicant has no lawful right to the land in dispute, and that this is not a proper case for the court to exercise its jurisdiction.

The first respondent prays that the application be dismissed with costs on a higher scale.

Second respondent's position.

[16] The second respondent initially filed an abiding affidavit, dated 9 June 2025, wherein the second respondent was not opposed to the relief being sought by applicant, citing applicant was the lawful occupier of the land in dispute.

[17] On the hearing date, however, the second respondent indicated that the error which was the cause of the whole dispute was in their office, and invited the parties to their office to solve the dispute amicably. Second respondent's counsel submitted that the Permanent Secretary in the Ministry of Lands, Agriculture, Fisheries, Water and Rural Development is responsible with the administration of all processes in the second respondent Ministry. It was further added that all the letters about the administrative errors were from the Permanent Secretary, and that applicant was indeed allocated plot 2, whereas first respondent was allocated plot 3. The second respondent, however, indicated that problems started to arise when both parties were shown the same piece of land on the ground, which was an administrative error.

Applicant's replica.

[18] In response, the applicant reaffirmed that applicant was issued with an offer letter for plot 3 on the 8th of September 2017, and that as such applicant has been in occupation of the plot since that day. Applicant submitted that there is, therefore, an interest on the land, and that the right emanates from the offer letter from the second respondent.

Applicant thus prayed that his rights be declared in terms of section 14 of the High Court Act, and prayed for an order in terms of the draft.

Applicable laws.

[19] Section 14 of the High Court Acts, which is the basis of this application, provides that:

> **"14 High Court may determine future or contingent rights**
>
> The High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

Analysis of the evidence and application of the law to facts.

[20] It is apparent that applicant was offered Plot Number 3 Homestead Number 3 of the Farm B of Woodvale, Umguza on the 8th of September 2017. It is also apparent that the first respondent was offered Plot Number 2 Homestead Number 2 of the Farm B of Woodvale, Umguza on the 8th of September 2017. However, it turns out that when the parties were shown the physical location on the ground, applicant was not present on the day in question. This piece of evidence was not challenged in court. It turns out that, as a result, first respondent was shown a geographical location purported to be plot 2, whereas, in fact, it was plot 3. This resulted in a number of legal proceedings before this court and attempts by the second respondent to solve the dispute, which efforts did not materialise.

[21] It is also apparent that the first respondent developed this plot in dispute from September 2017 by erecting a fence, pegging the area and sinking a borehole. Applicant, on the other hand, erected a slab under suspicious circumstances in that there was an extant court order barring anyone from developing the area pending the dispute.

[22] In *casu*, applicant prays that he be declared the rightful owner and occupier of plot 3, to the extent that the first respondent is evicted from plot 3. The applicant also seeks that the purported offer of plot 14 be declared null and void as it is fraudulent.

[23] Whereas it is true that applicant and the respondents were offered plot 3 and plot 2 respectively, in reality, they were allocated once piece of land. There is no doubt that there was double allocation of one piece of land by the second respondent, which fact was so acknowledged in this court. In light of that, first respondent cannot be faulted

for taking occupation of the plot in dispute. The second respondent indicated to this court that the parties must come to its office so that the issue is resolved.

[24] The applicant, however, is adamant that first respondent is in illegal occupation of his plot. This court is not in agreement with that view. It is the view of this court that there was an administrative error which must be best resolved by the second respondent. The requirements for a declaratur are well established in our jurisdiction.

[25] In *Streamsleigh Investments (Pvt) Ltd v Autoband Investments (Pvt) Ltd* 2014 (1) ZLR 736 (S) at 736H-737A, the Supreme Court held that:

> "A declaratory order under section 14 of the High Court Act [Chapter 7:06) is appropriate to determine any existing, future or contingent right or obligation. An Applicant for a declaratory order must be an interested person, in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. In addition, an applicant must establish that some tangible and justifiable advantage in relation to his position with reference to an existing, future or contingent legal right or obligation may appear to flow from the grant of the declaratory order sought."

[26] In the case of *Constable Sibanda v The Trial Officer (Chief Superintendent Masuku C) & 2 Ors* HB 128/18, page 3, the court also outlined the requirements of a declaratur as follows:

> "There are 3 requirements for a declaratory order. The 1st is that the person instituting the proceedings must be an interested person. Secondly, the court must inquire and determine an existing future or continent right or obligation. Thirdly, the case must be the proper one for the court to exercise the discretion conferred on it."

[27] In *casu*, it is apparent that the applicant is an interested person to the plot in dispute. This court must also determine whether the applicant has a future, existing or contingent right. In this court's view, the issue in dispute creates a challenge on determining the right to the plot in dispute. Whereas applicant was offered plot 3, and first respondent offered plot 2 on paper, on the ground, there is no doubt that there was double allocation of the land. This means that applicant has no clear right to the land in dispute. This issue must be resolved by the second respondent, who, in this court invited both parties to their office to resolve the issue. It is this court's view that the second respondent is the best placed office to determine and resolve the issue, since the error was on their part.

[28] Accordingly, this court finds that, whereas the applicant was offered plot 3, which created a right to occupy the said plot, there are administrative issues that must be resolved as a result of double allocation of the plot.

[29] This court also finds that this is not the best case for the court to exercise its discretion conferred on it. The first respondent is not in illegal occupation of the plot. The first respondent has made developments on the plot. The applicant seeks that she be evicted, whereas the matter may be resolved by the second respondent amicably. This court finds that, in this particular case, the applicant must first exhaust the internal remedies available to it before approaching this court.

[30] If this court was to exercise its discretion and declare the applicant the rightful owner of plot 3, that right would not be enforceable. Accordingly, the matter will only become an academic exercise, which is not envisaged by our jurisdiction.

[31]In light of the foregoing, this court orders as follows:

IT IS ORDERED THAT:

1. The Court Application for a declaratur be and is hereby dismissed.

2. No order as to costs.

CHIVAYO J: ……

Ncube and Partners, applicant's legal practitioners.
Tanaka Law Chambers, first respondent's legal practitioners.
Civil Division of the Attorney General, second respondent's legal practitioners.